inserting in lieu thereof the words "by the collector or deputy collector."

c. Paragraph (o) is amended by deleting the words "Commissioner of Customs" in the two places where they appear, and by inserting in lieu thereof the words "collector or deputy collector."

d. Paragraph (p) is amended by inserting "or deputy collector" after the word "collector" in the first sentence and by inserting "or deputy collector" after the word "collector" in the second sentence.

(Sec. 313, 46 Stat. 693, secs. 402, 403, 49 Stat. 1960, sec. 624, 46 Stat. 759; 19 U. S. C. 1313, 1624)

[SEAL] W. R. JOHNSON,
*Acting Commissioner of Customs.*

Approved: August 13, 1948.

JOHN S. GRAHAM,
*Acting Secretary of the Treasury.*

[F. R. Doc. 48-7462; Filed, Aug. 18, 1948; 8:51 a. m.]

# TITLE 36—PARKS AND FORESTS

## Chapter II—Forest Service, Department of Agriculture

### PART 251—LAND USES

#### MINING LOCATIONS IN HARNEY NATIONAL FOREST

Rules and regulations governing mining locations under the mining laws of the United States within that portion of the Harney National Forest, State of South Dakota, designated as the Custer State Park Game Sanctuary.

Pursuant to the provisions of the act approved June 24, 1948 (Pub. Law 747, 80th Cong.), and by virtue of the authority vested in the Secretary of Agriculture (R. S. 161, 5 U. S. C. 22), I, Charles F. Brannon, Secretary of Agriculture, do hereby issue the following regulations as § 251.11, Title 36, Chapter II, Part 251 of the Code of Federal Regulations.

§ 251.11 *Governing mining locations under the mining laws of the United States within that portion of the Harney National Forest, State of South Dakota, designated as the Custer State Park Game Sanctuary.* (a) Whoever locates a mining claim within the Custer State Park Game Sanctuary must, within ten (10) days after posting the location notice upon such claim, file a true copy such location notice with the Forest Supervisor of the Harney National Forest at Custer, South Dakota, and further, within ten (10) days after said location notice is filed for record pursuant to the State laws of South Dakota, a true copy of the recorded location certificate must be filed with said Forest Supervisor.

(b) All mining locators shall in all developments and operations make all reasonable provisions for the disposal of tailings, dumpage, and other deleterious materials or substances in such manner as to prevent obstruction, pollution, or deterioration of the land, streams, ponds, lakes, or springs, as may be directed by the Forest Supervisor.

(c) All slash resulting from cutting or destruction of forest growth incident and necessary to mining operations must be disposed of as directed by the Forest Supervisor.

(d) The cutting and removal of timber, except where clearing is necessary in connection with mining operations or to provide space for buildings or structures used in connection with mining operations, shall be conducted in accordance with the marking rules and timber sale practices applicable to the Harney National Forest, and such cutting and removal of timber shall be as directed by the Forest Supervisor.

(e) No use of the surface of a mining claim or the resources therefrom not reasonably required for carrying on mining and prospecting shall be allowed, except under the National Forest rules and regulations, nor shall the locator prevent or obstruct other occupancy of the surface or use of surface resources under authority of National Forest Regulations, or permits issued thereunder, if such occupancy or use is not in conflict with mineral development.

(f) When any road is to be built for mining purposes upon a mining claim, the locator must apply to the Forest Supervisor for the applicable rules and regulations governing the construction and maintenance of roads within the Harney National Forest, and such road will be built in accordance with such specifications and in such locations as the Forest Supervisor may direct.

(g) In conducting mining operations the locator, his agents, representatives, or employees, or other persons whose presence in the area or in the vicinity thereof, is occasioned by such mining operations, shall use due diligence in the prevention and suppression of fires, and shall, when requested by the Forest Supervisor, or his authorized representative, be available for service in the extinguishment and suppression of all fires occurring within the Sanctuary. *Provided*, That if such fire does not originate through any negligence on the part of the locator, his agents, representatives, or employees, or other persons whose presence in the area or in the vicinity thereof, is occasioned by such mining operations and does not threaten the structures, improvements or property incident to the mining operation, such persons shall be paid for their services at the current rate of pay of fire fighters employed by the United States.

(h) Nothing herein contained shall be construed to relieve the locator from complying with any requirements of the laws of the State of South Dakota, nor from compliance with or conformity to any requirements of any Federal law or regulation now existing or which later may be enacted or promulgated, and applicable to the subject involved herein. (R. S. 161, 5 U. S. C. 22; Pub. Law No. 747, 80th Cong.)

Issued this 13th day of August 1948.

[SEAL] CHARLES F. BRANNAN,
*Secretary of Agriculture.*

[F. R. Doc. 48-7455; Filed, Aug. 18, 1948; 8:49 a. m.]

# TITLE 43—PUBLIC LANDS: INTERIOR

## Chapter I—Bureau of Land Management, Department of the Interior

### PART 162—LIST OF ORDERS CREATING AND MODIFYING GRAZING DISTRICTS OR AFFECTING PUBLIC LANDS IN SUCH DISTRICTS

#### NEW MEXICO GRAZING DISTRICTS NOS. 3 AND 4

CROSS REFERENCE: For order affecting the tabulation contained in § 162.1, see F. R. Doc. 48-7433, establishing Air Navigation Site Withdrawal No. 254, under Bureau of Land Management in the Notices section, *infra*. This order takes precedence over but does not modify the orders of the Secretary of the Interior establishing New Mexico Grazing Districts Nos. 3 and 4.

[Circular No. 1691]

### PART 257—LEASE OR SALE OF SMALL TRACTS, NOT EXCEEDING FIVE ACRES, FOR HOME, CABIN, CAMP, HEALTH, CONVALESCENT, RECREATIONAL, OR BUSINESS SITES

#### MISCELLANEOUS AMENDMENTS

Part 257 containing the regulations governing leases or sales under the act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended, contained in Circular 1647, May 27, 1947 as amended by Circular 1665, November 19, 1947, is further amended to read as follows:

1. Sections 257.4, 257.8, 257.9, 257.10, 257.12, 257.18, 257.19, and 257.20 are amended by substituting the words "Regional Administrator" for the word "Director" wherever it appears.

2. Section 257.14 is amended by substituting the word "manager" for the word "Director."

(52 Stat. 609; 43 U. S. C. 662a)

MARION CLAWSON,
*Director.*

Approved: August 6, 1948.

C. GIRARD DAVIDSON,
*Assistant Secretary.*

[F. R. Doc. 48-7431; Filed, Aug. 18, 1948; 8:45 a. m.]

## Appendix—Public Land Orders

[Public Land Order 512]

### ARIZONA

#### REVOKING IN PART EXECUTIVE ORDER NO. 9104 OF MARCH 18, 1942, AS AMENDED

By virtue of the authority contained in the act of July 9, 1918, 40 Stat. 845, 848 (U. S. C., Title 10, sec. 1341), and pursuant to Executive Order No. 9337 of April 4, 1943, it is ordered as follows:

Executive Order No. 9104 of March 18, 1942, as amended by Executive Order No. 9526 of February 23, 1945, withdrawing public lands for use of the War Department as an aerial gunnery range, is hereby revoked so far as it affects the public lands in the hereinafter-described areas.

The jurisdiction over and use of such lands granted to the War Department by

Executive Order No. 9104 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on October 8, 1948.

At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from October 8, 1948, to January 7, 1949, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from September 18, 1948, to October 7, 1948, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on October 8, 1948, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on January 8, 1949, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from December 18, 1948, to January 7, 1949, inclusive, and all such applications, together with those presented at 10:00 a. m. on January 8, 1949, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Phoenix, Arizona, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, Phoenix, Arizona.

The lands affected by this order are the public lands in the following-described areas:

GILA AND SALT RIVER MERIDIAN

T. 6 S., R. 4 W.,
Sec. 18, lots 3, 4, E½SW¼;
Sec. 19, lots 1, 2, 3, 4, E½W½;
Sec. 30, lots 1, 2, E½NW¼.
T. 6 S., R. 5 W.,
Sec. 13;
Sec. 14, E½, SW¼, S½NW¼;
Secs. 15, 16, and 17;
Sec. 18, lots 3, 4, E½SW¼, SE¼, SE¼NW¼, E½NE¼, SW¼NE¼;
Secs. 19 to 23 inclusive, and secs. 25 to 36 inclusive.
T. 7 S., R. 5 W.,
Secs. 1 to 12 inclusive.
T. 6 S., R. 6 W.,
Sec. 13, E½SE¼, SW¼SE¼, and SE¼SW¼;
Sec. 22, E½SE¼, SW¼SE¼, and S½SW¼;
Sec. 23, S½, E½NE¼, SW¼NE¼, and SE¼NW¼;
Secs. 24 to 27, inclusive, and secs. 34 to 36, inclusive.
T. 7 S., R. 6 W.,
Secs. 1 to 3, inclusive, and secs. 10 to 12, inclusive.
T. 11 S., R. 6 W.,
Sec. 3, lot 4, SW¼NW¼ and W½SW¼;
Secs. 4 to 9, inclusive;
Sec. 10, W½NW¼ and SW¼;
Secs. 13 to 21, inclusive;
Sec. 24, W½W½;
Sec. 25, W½NW¼;
Sec. 26, S½;
Sec. 27, W½ and SE¼;
Secs. 28, 29, and 30.

The areas described, including both public and nonpublic lands, aggregate 44,508.12 acres.

The lands are level and rolling to rough and mountainous in character.

C. GIRARD DAVIDSON,
*Acting Secretary of the Interior.*

AUGUST 6, 1948.

[F. R. Doc. 48-7430; Filed, Aug. 18, 1948; 8:45 a. m.]

# PROPOSED RULE MAKING

## DEPARTMENT OF THE TREASURY

### Bureau of Customs

### [19 CFR, Part 16]

CONVERSION OF CURRENCY; CHILEAN PESO

NOTICE OF PROPOSED INSTRUCTIONS FOR THE PURPOSE OF THE ASSESSMENT OF DUTY ON MERCHANDISE IMPORTED INTO THE UNITED STATES

Notice is hereby given that, pursuant to section 251 of the Revised Statutes and sections 522 and 624 of the Tariff Act of 1930 (19 U. S. C. 66, 31 U. S. C. 372, 19 U. S. C. 1624), it is proposed to issue instructions for the conversion of the Chilean peso for the purpose of the assessment of duties on merchandise imported into the United States, the terms of which proposed instructions, in tentative form, are as follows:

*To Collectors of Customs and Others Concerned:*

Reference is made to cases in which appraisement has been withheld or liquidation has been suspended pending the determination of the proper rate or rates for the Chilean peso for customs purposes.

The Federal Reserve Bank certified two rates for the Chilean peso, one designated the "Official" rate and the other the "export" rate, for the period from November 30, 1937, to May 20, 1941, inclusive, after which latter date the certification of rates for the Chilean peso was temporarily suspended. It is understood from available information that Chilean law and regulations required that fixed percentages varying from 1 per cent to 20 per cent of the foreign exchange derived from the sale of various kinds of goods exported from Chile be sold or surrendered to the Central Bank of Chile at the "Official" rate of exchange while the remaining percentages varying from 80 per cent to 99 per cent could with the consent of the Exchange Control Commission or its successor, the National Foreign Trade Council, be sold at the "export" rate. In the case of exports of certain other kinds of goods (which during varying periods probably included nitrates, iodine, copper, iron ore and molybdenite) only a portion of the exchange which represented not less than the cost of production in Chile of the particular product was required to be returned to Chile. It is understood that these cost-of-production dollars were sold or surrendered at the "Official" rate, with the possible exception of those obtained for exports of nitrates and iodine, as to which commodities it appears that the exporters were sometimes permitted to liquidate a portion of their cost-of-production dollars at a rate more favorable to them than the "Official" rate.

By letter dated December 26, 1945, the Federal Reserve Bank advised the Treasury Department that it had decided to certify three rates for the Chilean peso for dates since May 20, 1941, one designated as "Official" from May 21, 1941, to July 21, 1942,